

LEGISLATURE OF THE STATE OF IDAHO
Sixty-eighth Legislature Second Regular Session - 2026

IN THE HOUSE OF REPRESENTATIVES

HOUSE BILL NO. 489

BY JUDICIARY, RULES AND ADMINISTRATION COMMITTEE

AN ACT

RELATING TO CRIMES AND PUNISHMENT; AMENDING CHAPTER 9, TITLE 18, IDAHO CODE,
BY THE ADDITION OF A NEW SECTION 18-915D, IDAHO CODE, TO PROHIBIT THE
USE OF A MASK OR DISGUISE DURING A CRIMINAL OFFENSE AND TO PROVIDE FOR A
SENTENCING ENHANCEMENT; PROVIDING SEVERABILITY; AND DECLARING AN EMER-
GENCY AND PROVIDING AN EFFECTIVE DATE.

Be It Enacted by the Legislature of the State of Idaho:

SECTION 1. That Chapter 9, Title 18, Idaho Code, be, and the same is
hereby amended by the addition thereto of a NEW SECTION, to be known and des-
ignated as Section 18-915D, Idaho Code, and to read as follows:

18-915D. USE OF MASK OR DISGUISE DURING CRIMINAL OFFENSE -- SENTENC-
ING ENHANCEMENT. (1) It shall be unlawful for any individual to wear a mask,
hood, or other device that covers, hides, or conceals any portion of the in-
dividual's face while committing or attempting to commit another criminal
offense.

(2) A person who violates the provisions of this section while commit-
ting or attempting to commit another criminal offense shall, upon convic-
tion, be subject to an enhanced penalty in addition to the sentence imposed
for the underlying offense. Such enhancement shall consist of an additional
fine not to exceed two thousand five hundred dollars (\$2,500), an additional
term of imprisonment not to exceed one (1) year, or both such fine and impris-
onment.

(3) The provisions of this section shall not be construed to preclude
prosecution or penalties under any other applicable law.

SECTION 2. SEVERABILITY. The provisions of this act are hereby declared
to be severable and if any provision of this act or the application of such
provision to any person or circumstance is declared invalid for any reason,
such declaration shall not affect the validity of the remaining portions of
this act.

SECTION 3. An emergency existing therefor, which emergency is hereby
declared to exist, this act shall be in full force and effect on and after
July 1, 2026.